

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 1165

By: Woolley

6 AS INTRODUCED

7 An Act relating to schools; requiring certain school
8 districts to obtain and record citizenship status of
9 enrolling students; requiring annual report to the
10 State Department of Education; prescribing report
11 requirements and exclusions; clarifying construction
12 of section; providing for codification; providing an
13 effective date; and declaring an emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 24-162 of Title 70, unless there
17 is created a duplication in numbering, reads as follows:

18 A. Publicly funded school districts shall obtain proof of
19 United States citizenship or legal immigration status from a parent
20 or legal guardian of a student or emancipated minor at the time of
21 enrollment. Proof of citizenship or legal immigration status may be
22 shown through one of the following:

23 1. An original or certified copy of a United States birth
24 certificate;

2. A valid, unexpired United States passport;

1 3. A valid Oklahoma driver license;
2 4. A valid Oklahoma identification card;
3 5. A Certificate of Naturalization;
4 6. A Certificate of Citizenship;
5 7. Consular Report of Birth Abroad or Certification of Birth
6 with a professional English translation;
7 8. Unexpired Permanent Resident Card;
8 9. Unexpired Employment Authorization Card; or
9 10. Valid, unexpired foreign passport with the original United
10 States visa entry stamp.

11 B. 1. Each school district shall record the citizenship status
12 of each student enrolled, including students for which a parent or a
13 legal guardian of a student, or the emancipated minor, could not
14 provide proof of citizenship or legal immigration status as outlined
15 in subsection A of this section.

16 2. Each school district shall submit an annual report to the
17 State Department of Education containing the number of enrolled
18 students who:

- 19 a. provided proof of United States citizenship,
20 b. provided proof of legal immigration status, and
21 c. failed to provide proof of citizenship or legal
22 immigration status.

23 3. The annual report shall exclude any personally identifiable
24 information.

1 4. Nothing in this section shall be construed to prohibit, or
2 inhibit, any child from receiving the education they are entitled to
3 receive under state or federal law.

4 SECTION 2. This act shall become effective July 1, 2025.

5 SECTION 3. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

9
10 60-1-10431 SW 12/31/24